

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Moriba Geoffroy	Team: Squad #03	CCRB Case #: 202300188	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/06/2023 10:21 PM, Friday, 01/06/2023 10:27 PM	Location of Incident: East 149th Street and Tinton Avenue; 40th Precinct Stationhouse	18 Mo. SOL 7/6/2024	Precinct: 40
Date/Time CV Reported Sat, 01/07/2023 12:30 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 01/07/2023 12:30 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Steven Echevarria	22749	962374	040 PCT
2. PO John Manzo	16260	960864	040 PCT
3. PO Andrei Nijnic	06784	961005	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Steven Echevarria	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria stopped § 87(2)(b)	A . Substantiated
B . PO John Manzo	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer John Manzo stopped § 87(2)(b)	B . Substantiated
C . PO Andrei Nijnic	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Andrei Nijnic stopped § 87(2)(b)	C . Substantiated
D . PO Steven Echevarria	Force: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Steven Echevarria	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria frisked § 87(2)(b)	E . Substantiated
F . PO Steven Echevarria	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria searched § 87(2)(b)	F . Substantiated
G . PO John Manzo	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer John Manzo threatened § 87(2)(b) with the use of force.	G . Within NYPD Guidelines
H . PO John Manzo	Force: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer John Manzo used physical force against § 87(2)(b)	H . Within NYPD Guidelines
I . PO Steven Echevarria	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria issued a retaliatory summons to § 87(2)(b)	I . Substantiated

Officer(s)	Allegation	Investigator Recommendation
J . PO Steven Echevarria	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria threatened to arrest § 87(2)(b)	J . Substantiated
K . PO Steven Echevarria	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria threatened to arrest § 87(2)(b)	K . Substantiated
L . PO Steven Echevarria	Abuse: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria threatened to arrest § 87(2)(b)	L . Substantiated
M . PO Steven Echevarria	Discourtesy: At the 40th Precinct Stationhouse, Police Officer Steven Echevarria spoke discourteously to § 87(2)(b)	M . Substantiated

Case Summary

On January 7th, 2023, § 87(2)(b) filed this complaint with the CCRB via the online website.

On January 6th, 2023, at approximately 10:21 p.m., § 87(2)(b) was running for the bus along East 149th Street and Tinton Avenue in the Bronx, with three friends: § 87(2)(b), § 87(2)(b), and § 87(2)(b). They were approached by PO Steven Echevarria, PO John Manzo, and PO Andrei Nijnic, all from the 40th Precinct. The officers stopped § 87(2)(b) (**Allegations A-C: Abuse of Authority; Substantiated**). PO Echevarria used physical force against § 87(2)(b) (**Allegation D: Force; Within NYPD Guidelines**). PO Echevarria frisked § 87(2)(b) (**Allegation E: Abuse of Authority; Substantiated**) and searched § 87(2)(b) (**Allegation F: Abuse of Authority; Substantiated**). While speaking to § 87(2)(b), PO Manzo threatened to use force against him (**Allegation G: Abuse of Authority; Within NYPD Guidelines**) and pushed § 87(2)(b) (**Allegation H: Force; Within NYPD Guidelines**). PO Echevarria issued a retaliatory summons to § 87(2)(b) (**Allegation I: Abuse of Authority; Substantiated**). While § 87(2)(b) was being placed into the police vehicle, PO Echevarria threatened to arrest § 87(2)(b) and § 87(2)(b) (**Allegation J-L: Abuse of Authority; Substantiated**). At the 40th Precinct stationhouse, PO Echevarria used profanity while speaking to § 87(2)(b) (**Allegation M: Discourtesy; Substantiated**). § 87(2)(b) was issued a summons for disorderly conduct.

Body worn camera (BWC) video was received from NYPD Legal [BR 1]. Cell phone video was also obtained [BR 2].

Findings and Recommendations

Allegation (A) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx.

Police Officer Steven Echevarria stopped § 87(2)(b)

Allegation (B) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx.

Police Officer John Manzo stopped § 87(2)(b)

Allegation (C) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx.

Police Officer Andrei Nijnic stopped § 87(2)(b)

Allegation (D) Force: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria frisked § 87(2)(b)

Allegation (F) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria searched § 87(2)(b)

Allegation (G) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer John Manzo threatened § 87(2)(b) with the use of force.

Allegation (H) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer John Manzo used physical force against § 87(2)(b)

§ 87(2)(b) testified that he was leaving a friend's house with § 87(2)(b) and § 87(2)(b) to catch the bus. They were half a block away from the bus stop and began running. As they got closer to the bus stop, they slowed down and § 87(2)(b) noticed an undercover police vehicle driving to the left of them. Three officers, whom the investigation determined were PO Echevarria, PO Manzo, and PO Nijnic, exited the vehicle and approached him. § 87(2)(b) stepped back, put his hands in the air, and said, "I do not consent to a search." PO

Echevarria said, “What do you not understand, you are not being searched.” PO Echevarria asked him why he was running, and § 87(2)(b) said he was running for the bus. PO Echevarria asked why he was running with his hands in his pocket and § 87(2)(b) replied, “I have my phone in my pocket and I did not want it to fall out.” PO Echevarria placed his left hand in § 87(2)(b) pocket and took out his phone. § 87(2)(b) said, “You look dumb now, right,” and told him to put his phone back into his “fucking pocket.” PO Echevarria placed § 87(2)(b) phone back into his pocket, pushed him against the gate and said, “Who you talking to my man, who you talking to?” PO Echevarria grabbed § 87(2)(b) arms, put them behind his back, and placed him into handcuffs [BR 3].

§ 87(2)(b) and § 87(2)(b) all provided testimonies that were generally consistent with each other [BR 4-6]. They all said while running to catch the next bus, officers came out of a vehicle and approached § 87(2)(b). PO Echevarria began asking § 87(2)(b) why he was running and what was in his pocket. PO Manzo and PO Nijnic kept telling § 87(2)(b) and § 87(2)(b) to back up. § 87(2)(b) testified that while PO Manzo was telling him to back up, he refused, and PO Manzo gave him a light push. PO Echevarria searched § 87(2)(b) right pocket and pulled out a phone. § 87(2)(b) said, “See it was my phone, you look dumb now.” PO Echevarria became angry, placed § 87(2)(b) into handcuffs, and took him to the police vehicle.

PO Echevarria’s BWC shows at 00:45 minutes, he exits the vehicle and approaches § 87(2)(b). He uses his left hand and guides § 87(2)(b) to the fence. § 87(2)(b) says, “I don’t consent to your search,” and PO Echevarria asks, “What you got in your pocket,” multiple times. PO Echevarria says, “My man, you running down the block with your hand in your pocket.” § 87(2)(b) tells the officers he was running for the bus. § 87(2)(b) again says that he does not consent to a search. PO Echevarria says, “You keep saying the same thing and nobody is searching you. What part of that do you not understand?” At 1:37 minutes, PO Echevarria asks § 87(2)(b) what he has in his pockets again, and he says his phone. PO Echevarria uses his left hand, frisks, and goes into the right pocket of § 87(2)(b) sweater, pulling out a phone. § 87(2)(b) says, “You look stupid now, right?” PO Echevarria says, “Nobody is stupid, watch your mouth,” and gets closer to him. § 87(2)(b) tells PO Echevarria to put his phone back into his pocket. At 2:10 minutes, PO Echevarria tells § 87(2)(b) to turn around, grabs his arms and places them into handcuffs [BR 1].

PO Nijnic’s BWC footage is generally consistent with the events in PO Echevarria’s. At 1:45 minutes, PO Nijnic’s BWC shows PO Echevarria taking his left hand to frisk and search § 87(2)(b) right hoodie pocket and then remove the cell phone [BR 1].

PO Manzo’s BWC shows at 1:15 minutes, he exits the vehicle and joins the other officers. At 1:30, PO Nijnic (wearing an NYPD hat) tells § 87(2)(b) (wearing glasses) to step back. § 87(2)(b) questions why § 87(2)(b) is being stopped. He asks one of the individuals what they were doing, and they say that they were running for the bus. He tells § 87(2)(b) multiple times to step back and at 1:56 minutes, tells him, “I am going to tell you one more time to take a step back, or I am going to make you take a step back.” § 87(2)(b) takes a step back and says, “I stepped back.” § 87(2)(b) and PO Echevarria are yelling in the background. At 2:15, PO Echevarria tells § 87(2)(b) to turn around. At 2:40 minutes, § 87(2)(b) approaches where PO Echevarria is

handcuffing § 87(2)(b) PO Manzo uses his left hand and guides § 87(2)(b) back [BR 1].

PO Echevarria testified that he was in a police vehicle travelling eastbound along East 149th Street near the intersection of Tinton Avenue, with PO Manzo and PO Nijnic. This was a high crime area and is associated with an ongoing gang war, shootings, and robberies. PO Manzo noticed four individuals who were running westbound on East 149th Street and alerted the other officers. PO Echevarria saw § 87(2)(b) running with his right hand in his pocket guarding an item. PO Echevarria said § 87(2)(b) was looking at the police vehicle as it drove by, which raised his level of suspicion. Based on his experience, the only time someone was trying to guard an item was when they had a firearm. The officers made a U-turn and caught up to the individuals, who stopped running. PO Echevarria got out of the vehicle and approached § 87(2)(b). He was not able to see what was in § 87(2)(b) pockets because he was wearing a Carhartt vest, which was made of stiff material. As he was walking towards him, PO Echevarria said, “What is in your pocket,” and § 87(2)(b) began backing up. PO Echevarria said, “Take your hands out of your pocket,” and § 87(2)(b) complied. He guided § 87(2)(b) to the fence using the back of his hand. § 87(2)(b) and § 87(2)(b) were all standing behind them. While on the fence, § 87(2)(b) said, “I do not give consent to the search,” and PO Echevarria replied, “I am not searching you.” PO Nijnic arrived and told PO Echevarria to conduct a stop report, because they thought § 87(2)(b) had a weapon. PO Echevarria frisked § 87(2)(b) and believed the item was a phone. He then placed his hands into § 87(2)(b) pocket to verify it was a phone. PO Echevarria did not frisk or search § 87(2)(b) immediately upon arrival because he wanted to ask questions first to find out what was in his pocket. After he was searched, § 87(2)(b) said, “You feel stupid now,” and PO Echevarria told him to relax. § 87(2)(b) became verbally aggressive and with his friends already standing behind them, PO Echevarria placed § 87(2)(b) into handcuffs to take him back to the stationhouse [BR 7].

PO Nijnic’s and PO Manzo’s testimonies were generally consistent in describing that § 87(2)(b) was seen running while holding something in his jacket pocket, which suggested that he was holding a firearm. They caught up with the group. § 87(2)(b) moved away from the group, which resulted in his right side (which he was holding) being positioned away from the officers. This also raised their suspicion that he was concealing a weapon [BR 8-9].

PO Manzo testified that he took up security to make sure § 87(2)(b) friends were not getting too close to the other officers, so they could do their job safely. § 87(2)(b) friends began yelling at the officers and surrounding them. § 87(2)(b) began getting too close to PO Echevarria as he was talking to § 87(2)(b). PO Manzo told § 87(2)(b) to get back, twice, and he ignored him. On the third time, PO Manzo told § 87(2)(b) “Move back, or I will make you move back.” § 87(2)(b) took a step back. PO Manzo meant that he would physically move him because it would be a safety concern. While PO Echevarria was speaking to § 87(2)(b) he began yelling. His friends began yelling and recording them. PO Echevarria decided to arrest § 87(2)(b) due to his actions during the stop of causing his friends to become aggressive. As § 87(2)(b) was being placed into handcuffs, § 87(2)(b) went over to PO Echevarria’s right side and walked closer to him. PO Manzo placed his hand out to stop him. § 87(2)(b) stopped and said, “Do not fucking touch me.” PO Manzo replied, “You are getting too close again and you are walking around too much.” [BR 9]

NYPD Patrol Guide Procedure 212-11 states that a stop may be conducted only when an officer reasonably suspects the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor. The officer may ask accusatory or pointed questions to determine if there is probable cause to arrest the person. The officer may frisk the person, if the officer has reasonable suspicion that the person is armed and dangerous. Further, the officer may seek consent to search and the consent must be voluntarily given [BR 10].

According to People v. DeBour, 40 N.Y. 2d 210 (1976), an officer may frisk an individual when they reasonably suspect that the individual may be armed and present a risk of harm to the officer [BR 11].

According to People v. Cornelius, 113 A.D.2d 666, the designation of a particular area as one with a higher-than-average incidence of crime does not give the police the carte blanche to search or touch the pocket of every individual on the street who walks in an out-of-the-ordinary manner, looks over his shoulder, or simply because it may be obvious that the individual happens to be carrying an unidentified object in his pocket. In this case, the court found that the officers lacked reasonable suspicion to stop and frisk a man who was walking in a high crime area while looking over his shoulder and in other directions repeatedly while having an unspecified heavy object in his jacket pocket [BR 12].

NYPD Patrol Guide Procedure 221-01 states that a member of service may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force reasonable, MOS should consider the nature/severity of the crime/circumstances, actions taken by the subject, duration of the action, number of subjects in comparison to number of MOS, size, age and condition of the subject in comparison to the MOS [BR 13].

NYPD Patrol Guide Procedure 221-02 states that officers should utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force and increase the likelihood of gaining the subject's voluntary compliance [BR 14].

§ 87(2)(g)

Therefore, it is recommended that **Allegations A-C** be closed as *Substantiated*.

PO Echevarria admitted that he guided § 87(2)(b) to the fence using the back of his hand. His BWC footage from 00:45 minutes shows him using his left hand to guide § 87(2)(b) to the fence. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as *Within NYPD Guidelines*.

§ 87(2)(g)

Therefore, it is recommended that **Allegations E-F** be closed as **Substantiated**.

PO Manzo admitted that he told § 87(2)(b) that if he did not move back, he would make him move back. § 87(2)(g)

Therefore, it is recommended that **Allegations G-H** be closed as *Within NYPD Guidelines*.

Allegation (I) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria issued a retaliatory summons to § 87(2)(b)

§ 87(2)(b) received a criminal summons for Disorderly Conduct by PO Echevarria. The narrative states that § 87(2)(b) was observed on a public sidewalk with intent to cause disruption, act in a violent manner towards police officer. § 87(2)(b) actions caused a crowd to gather [BR 15].

As noted above, PO Echevarria frisked § 87(2)(b) and removed his phone from his pocket. In PO Echevarria's BWC at 1:43, § 87(2)(b) says, "You look stupid now, right?" PO Echevarria says, "Nope, ain't nobody look stupid. Watch your mouth. Watch your mouth. Watch your mouth." PO Echevarria gets closer to him. PO Echevarria says, "What's up? You want to talk reckless? What's up? You want to talk reckless? You want to talk reckless? You got the wrong one. Watch your mouth. Watch your mouth." At 02:00, § 87(2)(b) says, "Put my phone back in my fucking pocket cuz you ain't pay for it." PO Echevarria says, "Yo, my man. Who you talking to? Who you talking to?" § 87(2)(b) says, "I'm talking to you. Look at my hands." § 87(2)(b) arms are outstretched to his side. PO Echevarria says, "Relax. One more time, relax." § 87(2)(b) asks, "Are you done?" At 2:10 minutes, PO Echevarria tells § 87(2)(b) to turn around, grabs his arms and places them into handcuffs [BR 1].

The same aspect of the incident is captured in the other officers' BWC videos. As noted above, in PO Manzo's BWC video, at 1:30, § 87(2)(b) questions why § 87(2)(b) is being stopped. § 87(2)(b) and § 87(2)(b) are standing by recording with their cell phones. At 02:17,

§ 87(2)(b) questions why § 87(2)(b) is being handcuffed. No other persons are captured stopping to observe the encounter [BR1].

PO Echevarria testified that he did not immediately end the encounter after learning that the object in § 87(2)(b) was a phone because there were other people present. He also noted that when a stop is conducted, officers have additional obligations, such as to provide a business card and explain the reason for the stop. § 87(2)(b) was given the summons because of his aggression and his friends surrounding the officers during the encounter. PO Echevarria explained that § 87(2)(b) was verbally aggressive and used an aggressive tone and language. PO Echevarria denied that he issued the summons due to the insults toward him from § 87(2)(b). PO Echevarria did not issue the summons at the incident location because there would have been a safety issue due to § 87(2)(b) friends. He wrote the C-summons for Disorderly Conduct, gave it to § 87(2)(b) and released him from the stationhouse. [BR 7].

New York Penal Law § 240.20 states that a person is guilty of disorderly conduct when, with an intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, they: (1) engage in fighting or in violent, tumultuous, or threatening behavior; (2) makes unreasonable noise; (3) uses abusive or obscene language, or makes an obscene gesture; (4) without lawful authority, disturbs any lawful assembly; (5) obstructs vehicular or pedestrian traffic; (6) congregates with other persons in a public place and refuses to comply with an order to disperse; or (7) creates a hazardous or physically offensive condition [BR 16].

According to People v. Baker, 20 N.Y.3d 354, isolated statements using coarse language to criticize the actions of a police officer, unaccompanied by other aggravating circumstances, rarely establishes the intent to cause the public harm required to support a charge of disorderly conduct. Critical to a charge of disorderly conduct is a finding that the defendant's disruptive statements and behavior were of a public rather than an individual dimension. The mere presence of spectators, without evidence that they became verbally or physically involved in the dispute, is not enough to constitute disorderly conduct [BR 17].

NYPD Administrative Guide Procedure 304-06 prohibits officers from engaging in conduct prejudicial to the good order, efficiency, or discipline of the Department [BR18].

In DCT Disciplinary Case No. 80514/04, a 13-year member of the NYPD forfeited ten vacation days and received reinstruction regarding the Department's Courtesy, Professionalism, and Respect policy for issuing summonses as a weapon of retaliation against a complainant who called him a "fucking liar" in traffic court and another who told him to have a "nice fucking day," during a car stop. The officer was found to have "allowed his personal feelings to cloud his judgment as an officer of the law" [BR19].

PO Echevarria stated that he gave § 87(2)(b) a summons for disorderly conduct because of his aggression and his friends surrounding the officers. § 87(2)(g)

§ 87(2)(b) BWC video revealed that none of § 87(2)(b) statements indicated any intent to cause his friends or anyone else to become involved in the incident; he merely voiced his objections about the police action to PO Echevarria.

§ 87(2)(b) made no threats towards the officers and made no violent statements. In addition, BWC footage of the incident showed that § 87(2)(b) and § 87(2)(b) were the only individuals present and were present from the start (as they were all together trying to catch the bus). § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation I** be closed as *Substantiated*.

Allegation (J) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria threatened to arrest § 87(2)(b).

Allegation (K) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria threatened to arrest § 87(2)(b).

Allegation (L) Abuse of Authority: At East 149th Street and Tinton Avenue, in the Bronx, Police Officer Steven Echevarria threatened to arrest § 87(2)(b).

While their specific verbiage varied slightly, § 87(2)(b) and § 87(2)(b) all provided consistent testimony that PO Echevarria threatened to arrest § 87(2)(b) and § 87(2)(b) while § 87(2)(b) was being placed in the police vehicle [BR 4-6].

In PO Echevarria's BWC video, at 3:18 minutes, he walks § 87(2)(b) to the police vehicle, frisks him, and places him into the back seat. An individual off camera asks twice, "where are you taking him," but none of the officers respond. PO Echevarria tells an officer to "get these guys back." An officer has his hand outstretched preventing § 87(2)(b) from moving forward. § 87(2)(b) and § 87(2)(b) are standing on the sidewalk. At 3:38 minutes, PO Echevarria says, "How many times do I have to tell you or else everyone is going to come with me. You all can record, you can do what you want, but everyone is going to come with me." [BR 1]

Cell phone video also captures this aspect of the incident. At 01:20, in "video 1.mov," officers are seen walking § 87(2)(b) to the police vehicle. The men repeatedly ask where § 87(2)(b) is being taken and where the officers are from." PO Nijnic stands behind PO Echevarria with his arm outstretched, which prevents § 87(2)(b) from moving any closer [BR 2].

PO Echevarria testified that as he took § 87(2)(b) to the vehicle, his friends began following behind. PO Echevarria told them that if they continue to get closer, they are going to come with them. § 87(2)(b) and § 87(2)(b) being that close was a safety concern for him and the other officers. This was an arrestable offense and would be considered Obstruction of Governmental Administration (OGA) [BR 7].

NYS Penal Law §195.05 states that a person is guilty of obstructing governmental administration (OGA) when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference [BR 20].

Physical force, as required by Penal Law 195.05, can consist of inappropriate and disruptive behavior at the scene of the performance of an official function. However, it must be proven that the defendant's intent was to prevent the public servant from engaging in a specific official function. An individual approaching an officer's back threateningly while the officer is conducting an arrest will constitute knowing, physical interference with, and disruption of, the arrest being performed. However, it must be proven that the defendant was acting threateningly or aggressively. Duncan v. City of New York, 2017 U.S. Dist. LEXIS 114607 (2017) [BR 21].

§ 87(2)(g)

Further, BWC video and cell phone shows PO Echevarria asking PO Nijnic to block the three men, and PO Nijnic having his hand out § 87(2)(g)

Therefore, it is recommended that **Allegations J-L** be closed as **Substantiated**.

Allegation (M) Discourtesy: At the 40th Precinct Stationhouse, Police Officer Steven Echevarria spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that when they arrived at the 40th Precinct stationhouse, he was taken out of the vehicle and brought to the front desk, where he was searched and placed into a holding cell. § 87(2)(b) was released 40 minutes later and was given a summons. § 87(2)(b) did not allege profanity was used toward him. [BR 3].

PO Echevarria's BWC video shows the officers driving § 87(2)(b) to the stationhouse and arriving at the 7:30 minute mark. PO Echevarria opens the car door and § 87(2)(b) says, "How should I do this to make this the most comfortable, sir? I'll do whatever's good for you, sir." PO Echevarria tells § 87(2)(b) to exit. § 87(2)(b) repeats similar statements about making PO Echevarria comfortable until he steps out at 8:00 without incident. While walking to the entrance, § 87(2)(b) says, "Am I walking at a good pace for you?" PO Echevarria says, "Come on, stop being a smart ass. You're getting out of here in 10 minutes." § 87(2)(b) says, "I know I'm getting out of here, cuz I ain't do nothing. Stupid ass nigger." PO Echevarria says, "You see, that's why you're here." The officers bring § 87(2)(b) into the stationhouse where he is ultimately lodged in a cell [BR 1].

PO Echevarria testified that he called § 87(2)(b) a "smart ass," because § 87(2)(b) should not have had any further comments when he told him that he was going to be released [BR 7].

NYPD Patrol Guide Procedure 200-02 states that officers must value human life, respect the dignity of each individual and render services with courtesy and civility. Officers must maintain a higher standard of integrity than is generally expected of others [BR 22].

There are certain situations where profane remarks made do not constitute misconduct, such as during stressful or chaotic situations. DCT Case Number 2018-18951 [BR 23].

PO Echevarria admitted that he called § 87(2)(b) a “smart ass.” § 87(2)(g)

Therefore, it is recommended that Allegation M be closed as *Substantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been a party [BR30].
- PO Echevarria has been a member of service for seven years and has been a subject in six other CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g)
- PO Manzo has been a member of service for seven years and has been a subject in 13 other CCRB complaints and 20 allegations, of which two were substantiated.:
 - 201804253 involved substantiated allegations of a discourteous word against PO Manzo. The Board recommended Command Level 1 Instructions and the NYPD imposed Instructions.
 - 201806550 involved substantiated allegations of force using a nonlethal restraining device against PO Manzo. The Board recommended Charges and the NYPD found PO Manzo Not Guilty. § 87(2)(g)
- PO Nijnic has been a member of service for seven years and has been a subject in five other CCRB complaints and 10 allegations, one of which was substantiated.
 - 201806550 involved a substantiated threat of force allegation. The Board recommended Command Discipline B and the NYPD imposed no discipline.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) did not respond to inquiries to determine if he wanted to proceed with investigation or mediation therefore, the case was investigated.
- As of May 11th, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident [BR 25].

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 3

Investigator:	<u>Moriba Geoffroy</u>	<u>Inv. Moriba Geoffroy</u>	<u>11/15/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Rolando Vasquez</u>	<u>IM Rolando Vasquez</u>	<u>11/16/2023</u>
	Signature	Print Title & Name	Date